

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Olga Bentin	Team: Squad #04	CCRB Case #: 201901238	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/09/2019 12:00 AM, Sunday, 02/10/2019 1:29 AM	Location of Incident: Front of Underground Club located at 10409 123rd Street	18 Mo. SOL 3/27/2021	Precinct: 106		
Date/Time CV Reported Mon, 02/11/2019 12:24 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/11/2019 12:24 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Michael Agunzo	18509	962913	106 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Christophe Diorio	13272	960464	106 PCT		
2. SGT Christophe Battaglia	05622	954529	106 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Michael Agunzo	Abuse: Police Officer Michael Agunzo questioned § 87(2)(b)			A . Unsubstantiated	

Case Summary

On February 11, 2019, § 87(2)(b) contacted the CCRB by phone and filed this complaint.

On February 10, 2019, at approximately 1:29 a.m., § 87(2)(b) was involved in a motor vehicle accident with an NYPD vehicle driven by PO Michael Agunzo of the 106th Precinct in front of 104-09 123rd Street in Queens. PO Agunzo allegedly asked § 87(2)(b) “Do you have any past records?” (**Allegation A: Abuse of Authority, unsubstantiated**).

As a result of this incident, § 87(2)(b) was not arrested, but was issued three summonses by PO Agunzo: one for § 87(2)(b)

(BR 02).

There is no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Agunzo questioned § 87(2)(b)

§ 87(2)(g)

The investigation has established the following facts. On February 10, 2019, at approximately 1:29 a.m., § 87(2)(b) drove to the Underground Club, located at 104-09 123rd Street in Queens, to meet with his friends. § 87(2)(b) was driving his 2011 black Mercedes-Benz, with New York license plate § 87(2)(b). § 87(2)(b) was not alone in the vehicle, but with his friend, § 87(2)(b).

Upon arrival, § 87(2)(b) saw a marked SUV double-parked directly in front of the club, and PO Agunzo speaking to one of the club’s bouncers. § 87(2)(b) drove around the marked SUV and double parked his vehicle approximately a house away from the marked SUV. § 87(2)(b) and § 87(2)(b) remained in the vehicle, while waiting for their friends.

§ 87(2)(b) (BR 01) stated that approximately ten minutes later, he heard PO Agunzo honk once and then saw him trying to drive around § 87(2)(b)’s vehicle. According to § 87(2)(b) PO Agunzo was alone in the vehicle. PO Agunzo did not have his vehicle’s emergency lights or siren turned on. Before § 87(2)(b) could move his vehicle, PO Agunzo proceeded to drive and glazed the rear of § 87(2)(b)’s vehicle with his marked SUV, scratching it. § 87(2)(b) immediately exited the vehicle to see what happened. § 87(2)(b) remained in the vehicle. PO Agunzo also exited his marked SUV, walked over to § 87(2)(b) and asked him what he wished to do. § 87(2)(b) told PO Agunzo that he wished his vehicle to be fixed and asked him to prepare an accident report. PO Agunzo replied, “Okay,” and then returned to his marked SUV. § 87(2)(b) also returned to his vehicle. Approximately 10 minutes later, § 87(2)(b) exited his vehicle and walked towards the club to see if his friends were there. § 87(2)(b) remained in the vehicle. At this time, PO Agunzo approached § 87(2)(b) and asked him, “Do you have any past records?” to which § 87(2)(b) replied, “No.” PO Agunzo then returned to his vehicle. § 87(2)(b) believed that PO Agunzo was asking him about his criminal or driving past records. PO Agunzo did not explain why he asked this question, nor did § 87(2)(b) ask for clarification.

The request for BWC recording returned negative results (BR 08). There is no other known source of video evidence.

PO Agunzo (BR 03) provided a generally consistent account with that of § 87(2)(b)’s statement about him being double-parked in front of the Underground Club. Between February 9,

2019, at 11:40 p.m., and February 10, 2019, at 1:29 a.m., PO Agunzo and PO Diorio were performing “directed time” within their sector by visiting various business establishments to address their concerns. PO Agunzo and PO Diorio were speaking to one of the club’s bouncers when they received a radio call of a “10-39” regarding a physical fight at the corner of 124th Street and 103rd Avenue. PO Agunzo and PO Diorio returned to their vehicle to respond to the job. When PO Agunzo attempted to drive away, he saw § 87(2)(b)’s vehicle double parked approximately 15 feet ahead of his vehicle. PO Agunzo turned on his vehicle’s emergency lights and attempted to drive around § 87(2)(b)’s vehicle. § 87(2)(b) did not move his vehicle. PO Agunzo then hit the siren once and waited for several seconds for § 87(2)(b) to move, but he did not. Because the job was of high priority, PO Agunzo could not wait much longer, thus he attempted to drive around § 87(2)(b)’s vehicle again. While doing so, PO Agunzo glazed the right rear side of § 87(2)(b)’s vehicle with the left front side of his vehicle, scratching both of them.

PO Agunzo then stopped and exited the vehicle, along with PO Diorio. § 87(2)(b) also exited his vehicle and yelled at PO Agunzo something to the effect of, “What the fuck is going on?” and, “What the fuck did you do?” PO Agunzo noticed a passenger, § 87(2)(b) in the front passenger seat. PO Agunzo asked § 87(2)(b) to calm down, told him that he was going to prepare an accident report, and then asked § 87(2)(b) for his driver’s license, car’s insurance, and registration. § 87(2)(b) refused to provide his documents to PO Agunzo and said that he did not need an accident report. PO Agunzo explained to § 87(2)(b) that he was required to call his supervisor and prepare the report, because a department vehicle was involved in the accident. Because § 87(2)(b) was upset, PO Agunzo decided to give him time to cool down. He asked § 87(2)(b) to return to his vehicle, and the latter complied.

Approximately five minutes later, PO Agunzo and PO Diorio returned to § 87(2)(b)’s vehicle, and PO Agunzo again asked § 87(2)(b) to provide his documents. § 87(2)(b) refused to provide his driver’s license, but instead provided his U.S. passport. PO Agunzo took the passport and returned to his vehicle. With the information listed in the passport, PO Agunzo ran a NYSPIN check for § 87(2)(b) to make sure that he had a valid driver’s license, which he did. A NYSPIN check is required for completion of the accident report. PO Agunzo denied running any warrant checks for § 87(2)(b) stating that it was not necessary.

Afterwards, PO Agunzo wrote three summonses to § 87(2)(b) (BR 02), which he then provided to him. Meanwhile, Sgt. Christopher Battaglia, of the 106th Precinct, responded to the location and prepared the accident report (BR 05), which is consistent with PO Agunzo’s testimony.

PO Agunzo denied asking § 87(2)(b) “Do you have any past records?” PO Agunzo stated that he may have asked § 87(2)(b) about his driving history, but denied ever inquiring about § 87(2)(b)’s past criminal record.

PO Diorio (BR 04) closely corroborated PO Agunzo’s testimony. PO Diorio did not hear PO Agunzo ask § 87(2)(b) “Do you have any past records?” nor did he hear PO Agunzo ask § 87(2)(b) any other questions about his past criminal record.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 06).
- PO Michael Agunzo has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A FOIL request was sent to the NYC Comptroller on April 2, 2019, for any Notice of Claim filed regarding this incident. The results of the request will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: 4

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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